

(a) **Appendix A – Tender Submission Requirements**

Annexure 1

(b) Tender Acknowledgement and Execution

The Tenderer must complete the Tender Acknowledgement and Execution form outlined below, including a register identifying and acknowledging receipt of all of the addenda that have been received through any means as part of this tender process.

Acknowledgement and Execution

- 1) In consideration of Western Power agreeing to consider this Tender Response, we offer to meet the obligations as described in the Tender document on the basis set out in this Tender Response.
- 2) We warrant that we have:
 - (a) The necessary resources, experience, expertise and capacity to execute and complete the WUC; and
 - (b) The statements, representations, claims and assertions made in this Tender Response are true and correct.
- 3) We acknowledge receipt of the following Addenda [#] to [#], the terms of which have been allowed for and incorporated into this Tender Response:
 - (a) Addendum No. [#], dated [insert];

[Note: Proponent to complete list of Addenda]
- 4) If we are appointed as preferred Tenderer as part of this tender process, we agree to enter into good faith negotiations with Western Power with the view to finalising the Contract.
- 5) We acknowledge that Western Power is not liable to us in respect of any error in or omission from or the adequacy of any information supplied to us by Western Power or its agents in any way relating to the RFT.

EXECUTED by [NAME OF PROPONENT]
by being signed by:

Signature of director

Signature of director/secretary

Name of director (please print)

Name of director/secretary (please print)

DATE:

Annexure 2

Volume 1: Tenderer Details

1.1 Company Information

Table 1: Company Information

1	Name of Tenderer:
2	The Tenderer is a corporation/partnership/joint venture/individual proprietor. (delete as appropriate)
3	ACN (if a corporation):
4	ABN:
5	Registered Office (if a corporation):
6	Business Address:
7	Street Address of the Contractor for service of notices:
8	Name of Contact Person:
9	Contact Person Telephone Number:
10	Contact Person Email Address:
11	Parent Company (if applicable):

If the Tenderer consists of two or more parties, the Tenderer must provide details of the relationship between the parties, including details of any formal contractual arrangements between the parties. The Tenderer must also provide details of items 3 to 7 and 11 in Table 1 above for each party.

The Tenderer must provide details of any significant actual or potential litigation against the company, its holding company or any subsidiaries. Where the Tenderer is a joint venture, the Tenderer must provide the required details for each participant in the joint venture.

1.2 Financial Capacity

The Tenderer must resubmit their responses from the Pre-Qualification Assessment. The Tenderer is required to provide details of any material changes to their financial capacity, insofar as it impacts their ability to deliver the WUC, since the submission of their Pre-Qualification Assessment. This

includes, but is not limited to, changes to any of the below financial metrics. You must also reconfirm that your Pre-Qualification submission remains valid for the full validity period for the RFT.

Pre-Qualification Wording:

- (a) *Regular and peak monthly cash flows;*
- (b) *Financial forecasts of the Proponent, including underlying assumptions, and commentary as to whether current and forecasted project commitments and financial exposures may have bearing on their ability to fund and / or deliver the package. Ideally forecasts are integrated / 3-way and for a forward-looking period of at least 12 months;*
- (c) *Audited financial statements for the past three years (for the Proponent and those of any proposed parent and/or guarantor entity), and to include detailed balance sheet, profit and loss and cash flow;*
- (d) *Credit rating reports;*
- (e) *Details of any significant actual or potential litigation against the company, it's holding or / and subsidiaries;*
- (f) *An acknowledgement that the Contractor is required to obtain the relevant insurances and cover the relevant liability limits prior to commencement of the WUC;*
- (g) *A confirmatory statement that the Proponent is not the current or prospective subject of an impending merger or acquisition, and that the Proponent, its subsidiaries or Parent are not currently subject to "Safe Harbour" protections;*
- (h) *Overview of current debt or other available financial facilities (including cash), including identification of debt facility term and headroom, and availability of cash reserves; and*
- (i) *Overview of project cash conversion cycle and how project is proposed to be funded by the Proponent.*
- (j) *Where the Proponent consists of more than one participant, or the Proponent's bid is supported by a Parent Company Guarantee or similar, the Proponent must provide the above information for each participant.*

1.3 Insurances

The Tenderer must provide a summary of all insurance policies required by the Contract in Table 2 below:

Table 2: Summary of Insurances

Insurance Type	Insurance Company	Policy No	Extent of Cover		Expiry Date
			Per Incident (\$A)	In Aggregate (\$A)	
<i>[to be completed with list from Contract(s)]</i>					

Without limiting any clauses in the Contract Documents with respect of insurances, the Tender must provide certificates of currency, or, where not available, draft certificates of currency for the following insurance policies required under the WUC; to the extent that your insurance policy is already compliant with the terms of the contract, please include your certificate of currency. For any new insurances please include draft certificates of currency.

Volume 2: Delivery Capability and Experience

2.1 Proposed Team

The Tenderer must provide an organisational structure for the delivery of the Works.

The Tenderer must complete a table in the form of Table 3 for each of the roles identified and provide:

- (a) CVs for each of the nominated personnel;
- (b) Likely commitments at the time of delivery of the Works of each of the nominated personnel, and how those commitments would be managed if the Tenderer became the Contractor for the Works; and
- (c) The percentage of time that person would be dedicated to the Works, on a quarterly basis, for the duration of the delivery of the Works.

Table 3: Summary of Nominated Personnel

Role	Name	Likely Commitments	% of Time / Quarter
Project Director/Manager	<i>[to be completed by Tenderer]</i>	<i>[to be completed by Tenderer]</i>	<i>[to be completed by Tenderer]</i>
Construction Manager			
Engineering & Design Manager			
Commissioning Manager			
Environmental Manager			
Commercial Manager			
Community Engagement Manager			
Quality Manager			
Safety Manager			

The Tenderer must also provide details of any subcontractors and consultants it intends to engage to assist in respect of the Works.

2.2 Delivery Capability and Experience

The Tenderer must resubmit their responses from the Pre-Qualification Assessment. The Tenderer is required to provide detail of any material changes in their delivery capability and experience since the submission of their Pre-Qualification Assessment, including any updates required taking into account **Error! Reference source not found.** and **Error! Reference source not found.** of this RFT.

Please reconfirm that your Pre-Qualification submission remains valid for the full validity period for the RFT.

Pre-Qualification Wording:

- a. *The Proponent must provide a statement that demonstrates any relevant experience in delivering design and construct projects of a similar nature and scale to what is proposed in the scope. In their response, the Proponent must provide project information sheets (maximum 5) that demonstrate their capability and experience. This statement must demonstrate:*
 - i. *The technical capability and experience in design, construction, and commissioning of:*
 1. *Terminals rated at 330kV or above;*
 2. *Substations rated at 132kV or above;*
 3. *Protection, automation and telecommunications for transmission systems rated at 132kV or above;*
 4. *Wood and steel poles rated at 132kV or above;*
 5. *Steel poles and towers rated at 330kV or above;*
 6. *Underground cables rated at 132kV or above; and*
 7. *Commissioning of primary and secondary utility installations,*
 - ii. *Understanding and experience as a Principal Contractor in managing and coordinating subcontractors on a multi-disciplinary site, as well as the works listed above (if these will not be carried out by the Proponent);*
 - iii. *The technical capability, proven management systems, experience, and availability to design, plan and manage the procurement, storage, and logistics of labour, plant, and materials required to deliver the WUC;*
 - iv. *The technical capability, experience, and availability to appropriately and innovatively sequence and deliver the WUC to a high-quality outcome within required timeframes; and*
 - v. *List of existing Australasian utility clients the Proponent is currently working with/have worked with in similar capacity. Please provide the years in services with the relevant client with volume of work.*

2.3 Client References

The Tenderer is required to provide three (3) client references for whom they have completed similar projects within the last five (5) years. The Tenderer must complete a table in the form of Table 4 for each of the references identified.

Table 4: Client References

Information Required	Reference 1	Reference 2	Reference 3
Client Name	<i>[to be completed by Tenderer]</i>	<i>[to be completed by Tenderer]</i>	<i>[to be completed by Tenderer]</i>
Position			
Company			
Phone Number			
Email Address			
Project Name			
Project Description			

Information Required	Reference 1	Reference 2	Reference 3
Project Value			
Project Duration			
Key Outcomes and Achievements			

Volume 3: Workplace Health, Safety, and Environment (WHSE)

The Tenderer must complete and submit the Western Power WHSE Prequalification Excel Workbook attached to this Request for Tender as **Error! Reference source not found.** of Appendix A – Tender Submission Requirements.

Should the Tenderer experience any material changes with respect to WHSE following submission of the Initial Tender Response, and before execution of any Orders, Western Power requests to be notified of these changes.

Volume 4: Delivery Strategy

4.1 Design Development Strategy

The Tenderer must provide their design development strategy in relation to the delivery of the WUC for the CELN project.

4.2 Construction Methodology

The Tenderer must provide their construction methodology in relation to the delivery of the WUC for the CELN project, and temporary or staging works where relevant. Where Tenderers have incorporated innovations and efficiencies within the Grid Transformation (GT) sequencing (as referenced in **Error! Reference source not found.** and **Error! Reference source not found.**), Tenders are to outline these efficiencies and provide justification.

4.3 Contractor's Plans

4.3.1 Initial Contractor's Plans

The Tenderers must provide, as a minimum, initial project-specific plans, including:

- (a) Initial Project Execution Plan;
- (b) Initial Engineering Management Plan;
- (c) Initial Health and Safety Management Plan; and
- (d) Initial Construction Management Plan;
- (e) Initial Commissioning Plan(s).

4.3.2 Sample Plans

The Tenderer must provide previous examples of the following plans from projects of a similar nature and scale as CELN;

- (c) Quality Management Plans
- (d) Risk Management Plans

Additional plans which demonstrate the Tenderer's ability to meet the evaluation criteria may also be provided.

4.4 Program

The Tenderer must provide a Program (Refer to **Error! Reference source not found.** for information on submission format) to which complies with the requirements set out in the Scope of Works provided as **Error! Reference source not found.** and **Error! Reference source not found.**. The Program must clearly identify activities and relationships between activities, and appropriately sequence the Works to accommodate the restriction and requirements of the relevant planning approvals.

Western Power anticipates that the Packages that comprise CELN will be grouped together as Separable Portions to allow for a staged handover. Western Power invites Tenderers to nominate appropriate groupings of the Packages in the format provided in Table 5: Separable Portions below.

Further details on Bundles and Work Packages can be found in **Error! Reference source not found.** and **Error! Reference source not found.**.

Table 5: Separable Portions

Bundle ID	Separable Portion ID	Work Package(s)	Start Date	Date for Practical Completion for this Separable Portion
[To be completed by Tenderer]	[To be completed by Tenderer]	[To be completed by Tenderer]	[To be completed by Tenderer]	[To be completed by Tenderer]

4.5 Risk Register

The Tenderer must prepare and submit as part of its Tender a detailed risk register which includes:

- (a) Any project risks identified by the Tenderer;
- (b) Any mitigation measures identified by the Tenderer; and
- (c) The indicative impact should these risks eventuate.

4.6 Workforce Strategy

The Tenderer is required to provide detail of any material changes in their workforce strategy since the submission of their Pre-Qualification Assessment, including any updates required taking into account **Error! Reference source not found.** and **Error! Reference source not found.** of this RFT. Please reconfirm that your pre-qualification submission remains valid for the full validity period for the RFT.

(a) Pre-Qualification Wording:

a. Proponent must describe:

- i. *The number of years your company has delivered the proposed services throughout Australia and in the WA market;*
- ii. *The current and forecast scale of its business operations throughout WA including the number of tradespeople and relevant qualifications, back-office support, access to relevant equipment etc; and*
- iii. *Where the Proponent does not have sufficient labour, plant, and equipment resources available in its own organisation, it must nominate its preferred approach to obtaining these resources.*

b. Proponent must describe:

- i. *Its organisation's long-term workforce strategy, including recruitment strategies for acquiring skilled and diverse staff, retention methods, and resource allocation for ongoing staff development over the next 20 years. This should include additive workforce strategies that develop additional talent within the Australian and West Australian Market.*

4.7 Participation Plan

The Tenderer must complete and submit the Participation Plan template attached to this Request for Tender as **Error! Reference source not found.** of Appendix A – Tender Submission Requirements.

Volume 5: Pricing

5.1 Pricing Schedules

The Tenderers must complete the **Error! Reference source not found.** for the Works. When completing the schedule, Tenderers should consider the following:

- (a) Each Bundle must be priced independently to reflect the cost of delivering that specific scope of work only, as per the **Error! Reference source not found.**
- (b) Where an option is identified in the Pricing Schedule for a Package, each option must be priced separately to support the Principal's decision making in identifying which option to proceed with.
- (c) If the Tenderer has capacity to undertake more than one (1) Bundle, the Tenderer may outline opportunities for efficiencies gained to deliver multiple Bundles. Any efficiencies must include specific reference to where these opportunities can be realised in the Pricing Schedule and/or the Schedule of Rates.

5.2 Schedule of Rates

The Tenderers must complete the **Error! Reference source not found.** for pricing Variations.

5.3 Cash Flow

The Tenderer must provide a projected cash flow for the delivery of each of the Bundles, consistent with the overall program and by cost items identified in the **Error! Reference source not found.** provided in Appendix A (Tender Submission Requirements).

Volume 6: Departures

6.1 Statement of Compliance or Departure

The Tenderer must complete and submit the 'Statement of Compliance or Departure' form below.

The Tenderer is requested to strike out or delete the option below that is not applicable:

OPTION 1: This Tender fully complies with each and every requirement of the RFT with the exception of the departures listed in the attached Statement of Departures.

OPTION 2: The Tenderer has reviewed the Contract and should the Tenderer enter into contracts with the Principal it accepts each and every clause of the Contract with no departures.

EXECUTED by [NAME OF TENDERER] by being signed by:	
Signature of director	Signature of director/secretary
Name of director (please print)	Name of director/secretary (please print)

6.2 Initial Proposed Departures to the Contract Documents

(b) The Tenderer must provide its initial proposed Statement of Departures with its **Initial Tender Response** in the following form:

Document ID	Departure ID	Reference Clause/Schedule	Description of Proposed Departure	Reason for Departure	Proposed Alternate Drafting

6.3 Final Proposed Departures to the Contract Documents

(a) The Tenderer must provide its final Statement of Departures in the following form:

Document ID	Departure ID	Reference Clause/Schedule	Description of Proposed Departure	Reason for Departure	Proposed Alternate Drafting